

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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VOYA RETIREMENT INSURANCE AND ANNUITY Index No. 850412/2025
COMPANY,

Plaintiff,

NOTICE OF SALE

-against-

UNIWAY PARTNERS, L.P., ADAM R. ROSE, THE
BOARD OF MANAGERS OF 30 EAST NINTH
STREET CONDOMINIUM, THE BOARD OF
MANAGERS OF 40 EAST NINTH STREET
CONDOMINIUM, THE BOARD OF MANAGERS OF
60 EAST NINTH STREET CONDOMINIUM, MASON
INDUSTRIES INC., GLAZE WINDOW AND DOOR
LLC, NEW YORK CITY ENVIRONMENTAL
CONTROL BOARD, STAPLES THE OFFICE
SUPERSTORE EAST, INC., T-MOBILE
NORTHEAST LLC, NEW YORK CITY
DEPARTMENT OF FINANCE, NEW YORK STATE
DEPARTMENT OF TAXATION AND FINANCE,

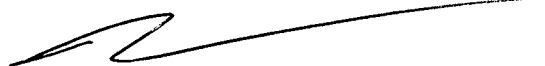
Defendants.

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Pursuant to the Decision and Order on Motion and Consent Judgment of Foreclosure and Sale (the “Judgment”) dated March 10, 2026, and entered on March 30, 2026, in the above entitled action, I, the undersigned Referee will sell at public auction at the New York County Supreme Court, located at 60 Centre Street, Room 252, New York, New York 10007 on **June 2, 2026 at 2:15 P.M.**, (the “Foreclosure Auction”) premises known as (i) 21 University Place a/k/a 30 East 9th Street, New York, New York 10003 (Block: 560, Lot: 1002) (“30 East”); (ii) 40 East 9th Street, New York, New York 10003 (Block: 560, Lot: 1102) (“40 East”); and (iii) 60 East 9th Street, New York, New York 10003 (Block: 560, Lot: 1202) (“60 East” and together with 30 East, 40 East, collectively, the “Property”) and described in Schedule “A” annexed hereto.

As of the date of the Judgment, the approximate amount of the lien is \$56,906,206.99, plus accrued interest and costs. Premises will be sold subject to the provisions of the filed Judgment and terms of sale.

Roberta Ellen Ashkin, Esq., Referee



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SCHEDULE APARCEL 1:

The Condominium Unit (hereinafter referred to as the "Unit") in the building (hereinafter referred to as the "Building") known as the 30 East Ninth Street Condominium, and by the Street Number 30 East 9th Street, Borough of Manhattan, County, City and State of New York, said Unit being designated and described as Unit No. 2 (Commercial) in a certain Declaration dated 3/5/1986, made by the Sponsor pursuant to Article 9-B of the Real Property Law of the State of New York (hereinafter referred to as the "Condominium Act") establishing a plan for condominium ownership of the building and land (hereinafter referred to as the "Land"), upon which the Building is situate (which Land is more particularly described below), which Declaration was recorded in the New York County Office of the Register of The City of New York on 5/9/1986 in Reel 1061 Page 1910, as amended and Restated by Amended and Restated Declaration of Condominium, dated 5/12/1986 and recorded 5/13/1986 in Reel 1063 Page 329, and further amended and restated by Second Amended and Restated Declaration of Condominium, dated 7/29/1986 and recorded 7/30/1986 in Reel 1075 Page 1991 (which declaration and amendments thereto are hereinafter collectively referred to as the "Declaration"). This Unit is also designated as Tax Lot 1003 in Block 560 of the Borough of Manhattan on the Tax Map of the Real Property Assessment Department of the City of New York and on the Floor Plans of the Building filed with said Assessment Department as Condominium Plan No. 306, and also filed in the City Register's Office on 5/9/1986 as Map No. 4456.

TOGETHER with an undivided 27.84% interest in the Common Elements (as such term is defined in the Declaration).

The Land on which the Building containing said Unit is more particularly bounded and described as follows:

ALL that certain plot, piece or parcel of land, situate, lying and being in the Borough of Manhattan, City, County and State of New York, which comprises Lots 166, 167, 168, 169, 170, 171, 172, 173, 125, 126, 127, 128, 129, 130, 131, 132 and 133 as shown on Map of Property of the Trustees of the Sailor's Snug Harbor in the City of New York, made by Edwin Smith, C.S., dated 4/13/1848 and filed in the Office of the Register of the City of New York, New York County, now Register of the City of New York on 4/27/1848 as Map No. 158, which said Lots taken together are bounded and described as follows:

BEGINNING at the corner formed by the southerly side of East 9th Street, and the easterly side of University Place;

RUNNING THENCE easterly and along the southerly side of East 9th Street, 227 feet 7-3/4 inches;

THENCE in a southerly direction at right angles to the southerly side of East 9th Street, 187 feet 10 inches to the northerly side of East 8th Street;

THENCE westerly and along the northerly side of East 8th Street, 241 feet 3-5/8 inches to the easterly side of University Place; and

THENCE northerly along the easterly side of University Place, 128 feet 3-7/8 inches to the point or place of BEGINNING.

PARCEL 2:

The Condominium Unit (hereinafter referred to as the "Unit") in the building (hereinafter referred to as the "Building") known as the 40 East Ninth Street Condominium and by the Street Number 40 East 9th Street, Borough of Manhattan, County, City and State of New York, said Unit being designated and described as Unit No. 2 (Commercial) in a certain declaration dated 3/5/1986, made by the Sponsor pursuant to Article 9-B of the Real Property Law of the State of New York (hereinafter referred to as the "Condominium Act"), establishing a plan for condominium ownership of the building and land (hereinafter referred to as the "Land"), upon which the Building is situate (which Land is more particularly described below), which Declaration was recorded in the New York County Office of the Register of The City of New York on 5/9/1986 in Reel 1061 Page 1971, as amended and Restated by Amended and Restated Declaration of Condominium, dated 5/12/1986 and recorded 5/13/1986 in Reel 1063 Page 186, and further amended and restated by Second Amended and Restated Declaration of Condominium, dated 7/29/1986 and recorded 7/30/1986 in Reel 1095 Page 1840 (which declaration and amendments thereto are hereinafter collectively referred to as the "Declaration"). This Unit is also designated as Tax Lot 1102 in Block 560 of the Borough of Manhattan on the Tax Map of the Real Property Assessment Department of the City of New York and on the Floor Plans of the Building filed with said Assessment Department as Condominium Plan No. 304, and also filed in the City Register's Office on 5/9/1986, as Map No. 4455.

TOGETHER with an undivided 16.87% interest in the Common Elements (as such term is defined in the Declaration).

The Land on which the Building containing said Unit is more particularly bounded and described as follows:

ALL that certain plot, piece or parcel of land, situate, lying and being in the Borough of Manhattan, City, County and State of New York, which comprises Lots 174, 175, 176, 177, 178, 179, 180, 181, 117, 118, 119, 120, 121, 123 and 124 in Block 560, as shown on map of property of Lessor, made by Edwin Smith, City Surveyor, dated 4/13/1848 and filed in the Office of the Register of the County of New York, now Register of the City of New York, New York County on 4/27/1848 as Map No. 158, which said lots taken together are bounded on the North by East 9th Street, on the West by the easterly lines of Lots 125 and 173, respectively in Block 560, as shown on said map on the South by East 8th Street and on the East by the westerly lines of Lots 116 and 182, respectively in Block 560, as shown on said map, which plot is more particularly bounded and described as follows:

BEGINNING at a point on the southerly side of East 9th Street, 248 feet 1-7/8 inches westerly from the corner formed by the intersection of said southerly side of East 9th Street, and the westerly side of Broadway;

RUNNING THENCE southerly at right angles to the southerly side of East 9th Street, a distance of 187 feet 10 inches to the northerly side of East 8th Street, which point is distant 235 feet 7 inches westerly from the corner formed by the intersection of the said northerly side of East 8th Street, with the westerly side of Broadway;

THENCE westerly at right angles to the last mentioned line and along the northerly side of East 8th Street, a distance of 200 feet to a point, 241 feet 3-5/8 inches easterly from the corner formed by the intersection of the said northerly side of East 8th Street, with the easterly side of University Place;

THENCE northerly at right angles to the northerly side of East 8th Street, a distance of 187 feet 10 inches to the southerly side of East 9th Street, which point is distant 227 feet 7-3/4 inches easterly from the intersection of the said southerly side of East 9th Street, with the easterly side of University Place;

THENCE easterly at right angles to the last mentioned line of 200 feet to the point or place of BEGINNING.

PARCEL 3:

The Condominium Unit (hereinafter referred to as the "Unit") in the building (hereinafter referred to as the "Building") known as the 60 East Ninth Street Condominium and by the Street Number 60 East 9th Street, Borough of Manhattan, County, City and State of New York, said Unit being designated and described as Unit No. 2 (Commercial) in a certain Declaration dated 3/5/1986, made by the Sponsor pursuant to Article 9-B of the Real Property Law of the State of New York (hereinafter referred to as the "Condominium Act"), establishing a plan for condominium ownership of the building and land (hereinafter referred to as the "Land"), upon which the Building is situate (which Land is more particularly described below), which Declaration was recorded in the New York County Office of the Register of The City of New York on 5/9/1986 in Reel 1061 Page 1849, as amended and Restated by Amended and Restated Declaration of Condominium, dated 5/12/1986 and recorded 5/13/1986 in Reel 1063 Page 257, and further amended and restated by Second Amended and Restated Declaration of Condominium, dated 7/29/1986 and recorded 7/30/1986 in Reel 1095 Page 1916 (which declaration and amendments thereto are hereinafter collectively referred to as the "Declaration"). This Unit is also designated as Section 2 Tax Lot 1202 in Block 360 of the Borough of Manhattan on the Tax Map of the Real Property Assessment Department of the City of New York and on the Floor Plans of the Building filed with said Assessment Department as Condominium Plan No. 303, and also filed in the City Register's Office on 5/9/1986 as Map No. 4457.
